

25VECV01683 25VECV01683

County: los-angeles

Division: Civil Law and Motion

Department: O

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Case Number: 25VECV01683 Hearing Date: August 14, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

ERICKA HABANA, an Individual,

Plaintiff,

vs.

HI-TECH BUILDERS, INC., a California Corporation; and DOES 1 - 10, inclusive,

Defendant.

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CASE NO.: 25VECV01683

ORDER DENYING PLAINTIFF'S MOTION FOR SANCTIONS PURSUANT TO CCP 128.7

I. BACKGROUND

Plaintiff Ericka Habana ("Plaintiff" filed this employment action against Hi-Tech Builders, Inc. ("Defendant"). Plaintiff alleges she was employed by Defendant as a Marketing Associate from September 30, 2024, until her constructive discharge on January 27, 2025. Plaintiff alleges during her employment, she was subjected to a hostile work environment created and maintained by David Lachyani ("Lachyani") and that Defendant regularly violated California wage and hour laws and maintained a pattern of unlawful payroll practices.

Plaintiff moves for sanctions pursuant to § 128.7.

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II. PROCEDURAL HISTORY

On March 25, 2025, Plaintiff filed a Complaint alleging (1) Hostile Work Environment in Violation of FEHA (Gov't Code § 12940(j)); (2) Failure to Prevent Harassment and Discrimination in Violation of FEHA (Gov't Code § 12940(k)); (3) Constructive Discharge in Violation of Public Policy; (4) Failure to Provide Meal Periods (Labor Code § 512); (5) Failure to Provide Rest Periods (Labor Code § 226.7); (6) Failure to Pay All Wages When Due (Labor Code § 204); (7) Failure to Pay All Wages Due Upon Separation (Labor Code §§ 201-203); (8) Failure to Provide Accurate Itemized Wage Statements (Labor Code § 226); (9) Failure to Provide Employment Records (Labor Code §§ 226(b), 1198.5); (10) Failure to Pay Commissions (Labor Code § 204.1); (11) Unfair Business Practices (Bus. & Prof. Code §§ 17200, et seq.)

On May 27, 2025, Defendant filed an Answer.

On September 24, 2025, the Court granted the parties' stipulation to file a First Amended Complaint ("FAC") as of that date. The Stipulation and Order also provided that Defendant was to file a responsive pleading within 30 days and that failure to do so would result in the Court deeming its previously filed Answer to also be the Answer to the FAC. Defendant has not filed an Answer to the FAC.

On April 20, 2026, the Court granted Michael Spigel's Motion to Be Relieved as Counsel.

On April 27, 2026, the Court granted in part Plaintiff's discovery motions and ordered Defendant to pay discovery sanctions.

On July 15, 2026, Plaintiff filed the instant Motion for Sanctions.

On August 3, 2026, Defendant filed a Notice of Withdrawal of Notice of Mootness filed April 16, 2026.

On August 7, 2026, Plaintiff filed a Reply.

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III. LEGAL STANDARD

"By presenting to the court, whether by signing, filing, submitting, or later advocating, a pleading, petition, written notice of motion, or other similar paper, an attorney or unrepresented party is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances, all of the following conditions are met: (1) It is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation. (2) The claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law. (3) The allegations and other factual contentions have evidentiary support or, if specifically, so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery." (Code Civ. Proc. § 128.7(b).)[1]

"This section shall not apply to disclosures and discovery requests, responses, objections, and motions." (Id., § 128.7(g).)

IV. ANALYSIS

Plaintiff moves for sanctions pursuant to § 128.7 in regards to this Court's April 27, 2026, discovery order and Defendant's Notice of Mootness filed on April 16, 2026. Plaintiff brings this Motion on grounds that: (1) Defendant has failed to pay the \$4,640.00 in monetary sanctions ordered by the Court on April 27, 2026, which were due no later than June 1, 2026; and (2) Defendant filed a frivolous Notice of Mootness. (See Mot. at 4:16-5:3.)

The Court will deny the Motion. By its terms, Code of Civil Procedure § 128.7 does not apply to disclosures and discovery requests, responses, objections and discovery motions. (See Code Civ. Proc. § 128.7(g).) Here, Plaintiff seeks to apply § 128.7 to a Notice of Mootness Defendant filed in response to Plaintiff's Motions to Compel Further Discovery in which it argued the motions were moot because it served code compliant responses to all of Plaintiff's motions. (See Notice of Mootness filed April 16, 2026.) Plaintiff also seeks to apply § 128.7 for Defendant's failure to comply with a discovery order. Because Code of Civil Procedure § 128.7 is a mechanism for non-discovery sanctions only, the Court DENIES Plaintiff's Motion for Sanctions.

V. CONCLUSION

Based on the foregoing, the Court DENIES Plaintiff's Motion for Sanctions.

IT IS SO ORDERED.

DATED: August 14, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.